

Before the

FEDERAL MARITIME COMMISSION
Washington, D.C. 20573

_____	)	
MOHAWK GLOBAL LOGISTICS CORP. DBA	)	
MOHAWK GLOBAL LOGISTICS,	)	
<i>Complainant,</i>	)	
v.	)	Docket No. 1971(F)
	)	
MSC MEDITERRANEAN SHIPPING COMPANY	)	
(USA) INC., as agent for MEDITERRANEAN	)	
SHIPPING COMPANY, S.A. GENEVA	)	
<i>Respondent.</i>	)	
_____	)	

**JOINT MOTION FOR APPROVAL OF
SETTLEMENT AND TO PRESERVE CONFIDENTIALITY OF SETTLEMENT**

Complainant Mohawk Global Logistics Corp. dba Mohawk Global Logistics ("Mohawk") and Respondent MSC Mediterranean Shipping Company (USA) Inc., as agent for Mediterranean Shipping Company, S.A. ("Respondent"), having reached a settlement of Mohawk's claims against Respondent in this action, respectfully move the Honorable Erin M. Wirth, Chief Administrative Law Judge and the presiding officer in this action, pursuant to 46 C.F.R. §§ 502.72(a)(3), 502.5 and 502.13(c), for an order (1) permitting the filing of the settlement agreement (the "Settlement Agreement"); (2) approving the Settlement Agreement; (3) on the basis of the Settlement Agreement, dismissing Mohawk's claims against Respondent in this action with prejudice; and (4) maintaining the confidentiality of the Settlement Agreement.

PROCEDURAL HISTORY

Mohawk filed a small claims complaint initiating this action on July 29, 2021. Respondent did not consent to the adjudication of the claim under the small claims procedure, and filed its response on September 3, 2021.

THE SETTLEMENT AGREEMENT SHOULD BE APPROVED

"The Commission has a strong and consistent policy of `encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.'" *Aeneas Exporting LLC, Complainant v. Carlo Shipping Int'l, Inc., Respondent.*, Docket No. 2011, 2020 FMC LEXIS 189, at *2, 2020 WL 5942148, at *2 (Fed. Mar. Comm'n Aug. 24, 2020) (Wirth, C.J.) (quoting *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002)) (emphasis in original). "[I]f it is the considered judgment of the parties that whatever benefits might result from vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement." *Delhi Petroleum Pty. Ltd. v. U.S. Atl. & Gulf/Australia - New Zealand Conf. and Columbus Line, Inc.*, Docket Nos. 88-2, 88-4, 1988 FMC LEXIS 25, at *19, 24 S.R.R. 1129, 1134 (All Aug. 12, 1988)). "Reaching a settlement allows the parties to settle their differences, without an admission of a violation of law by the respondent, when both the complainant and respondent have decided that it would be much cheaper to settle on such terms than to seek to prevail after expensive litigation." *Mac Indus., Inc. d/b/a Mac Container Line, Complainant v. Cosco Shipping Lines Co., Ltd., Respondent.*, Docket No. 20-09, 2020 FMC LEXIS 181, at *3, 2020 WL 4464298, at *2 (Fed. Mar. Comm'n July 29, 2020) (Wirth, C.J.) (quoting *APM Terminals N Am., Inc. v. Port Auth. of N.Y. and N.J.*, 31 S.R.R. 623, 626 (FMC 2009)).

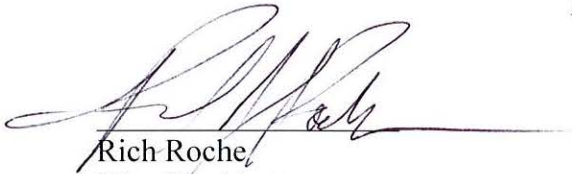
Evaluating this motion to approve the Settlement Agreement entails examining whether it "reflects careful consideration by the parties of a variety of factors, including the relative strengths of their positions weighed against the risks and costs of continued litigation." *APM Terminals N Am., Inc.*, 31 S.R.R. at 636 (quoting *Delhi Petroleum Pty. Ltd.*, 24 S.R.R. at 1134). The primary factor to be considered, however, is the FMC's "strong and consistent policy of encouraging settlements" *APM Terminals N. Am., Inc.*, 31 S.R.R. at 625 (quoting *Inlet Fish Producers, Inc.*, 29 S.R.R. at 978).

In this action, the parties, both sophisticated corporate entities, arrived at the Settlement Agreement through arm's length negotiations and support this motion and the relief that it seeks. The Settlement Agreement does not contravene any law or public policy, and is neither unjust nor discriminatory. It does not contemplate any adverse effects on any third parties or the shipping public. Instead, the Settlement Agreement is a fair and reasonable resolution of the dispute between the parties and reflects their desire to resolve their issues without the need for costly and uncertain litigation. For these reasons, the parties respectfully request that the Settlement Agreement be approved and, on that basis, Mohawk's claims against Respondent in this action be dismissed with prejudice.

REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

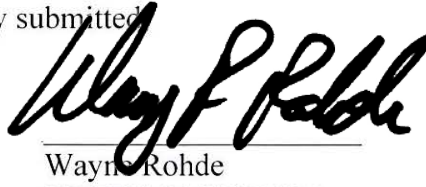
The FMC routinely affords confidential treatment to settlement agreement under 46 C.F.R. § 502.5, recognizing that they "often contain sensitive commercial information that should be protected from public disclosure." *D.F. Young, Inc., Complainant, v. NYK Line (North America) Inc., Respondent.*, Docket No. 16-02, 2018 FMC LEXIS 41, at *6, 1 F.M.C.2d 135, 136-37 (Fed. Mar. Comm'n May 22, 2018). "If parties wish to keep the terms of their settlement agreements confidential, the Commission, as well as the courts, have honored such requests." *Marine Transp. Logistics, Inc., Complainant v. CMA-CGM (America) LLC, Respondent.*, Docket No. 18-07, 2020 FMC LEXIS 24, at *6, 2020 WL 948582, at *3 (Fed. Mar. Comm'n Feb. 18, 2020) (Wirth, C.J.) (quoting *Al Kogan v. World Express Shipping, Transp. and Forwarding Servs., Inc.*, Docket No. 00-04, 29 S.R.R. 68, 70 n.7 (All Dec. 14, 2000)). This Settlement Agreement is the result of confidential commercial negotiations between the parties, and the parties therefore respectfully request leave to file the Settlement Agreement under seal for review and approval, and that the Settlement Agreement thereafter continue to be afforded confidential treatment by the FMC.

Dated: November 23, 2021



Rich Roche
Vice President
Mohawk Global Logistics Corp.
123 Air Cargo Road
North Syracuse, NY 13212
RRoche@mohawkglobal.com

Respectfully submitted



Wayne Rohde
COZEN O'CONNOR
1200 19th Street, NW
Washington, DC 20036
wrohde@cozen.com

Counsel for Respondent